

Document Detail

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his acceptance or non-acceptance online. In all cases of acceptance, last working day should be clearly mentioned and communicated to HR.

4. That during notice period, he/she needs to conduct smooth handover of his/her current responsibilities. The company reserves the right to extend the notice period if the employee goes on leave during the notice period.
5. In an exceptional case of a notice pay waiver, the shortfall will always be first adjusted against the employee's available leave balance to the exiting employee's credit. The date of resignation for all purposes shall be the on-line system date for the purpose of calculating notice period, etc.
6. That She/he needs to submit the company's assets included but not limited to all the information received in the course of employment with the Company, including, without limitation, documents, laptop computer, computer-generated information, reports, client's data, studies, data and other materials and shall retain no copies of any such property or information as gathered or acquired by virtue of Employee Employment, to the respective departments, clear dues and submit no certificate to HR department before leaving the organization for further process of his/her leaving/experience certificate & full and final settlement.
7. That all documents, records, data, equipment and other physical property, which are or were furnished to the Employee by any of the Company or any of its affiliates or were produced by the Employee in connection with employment with the Company will be and remain the sole property of the Company.

8. That all benefits such as insurance cease to exist from the date of resignation or the last day. Compensatory leaves, if any, will not be reimbursed in cash. If there is a PF account with the company, it will be discharged. Third-party PF, if any, will remain the same unless the employee chooses otherwise. Any such transaction will be between the employee and the third party.
9. That the Full & Final Settlement will be done within 45 days, from the Employees Last Working Day, provided that the Employee has resigned as per company policy by adhering all the clauses of this all-instant document including returning all the assets and documents. For the purpose of calculation of full and final settlement the following points will be considered:
 - a) All payments will be made to the ex-employee for the days unpaid from the last paycheck day to the last day of employment, which includes the annual components (wherever applicable) like Medical etc.
 - b) There will be deduction in respect of any excess leaves taken over and above the person's pro-rata entitlement for the particular leave year.
 - c) The number of days of notice period not served will be adjusted against the ex-employee's final payment.
 - d) Any receivable from the ex-employee towards taxes and other statutory dues.
 - e) Any other amount re-coverable from the ex-employee
 - f) Leave not permitted during notice period. Any excess leave balance will get adjusted in the Full and Final Settlement (F&F)
10. That the employee has to adhere with the following terms at and after leaving the Company: -
 - a) That the Employee undertakes to not misuse any information/credentials as shared or gain during the tenure of the Employment.
 - b) That the Employee has also assured to not approach or influences any of the employee of Company in whatsoever manner.
 - c) That for the period of 6 months from the termination, the Employee will not directly or indirectly, knowingly cause or induce any present or future employee of the Company or any of its affiliates to leave the employment of the Company (or affiliate) or to accept employment with the Employee's own firm or any other person, firm, association or company.
 - d) That the Employee also assures to not approach the clients of the Employer Company organization directly or indirectly in whatsoever manner. In addition to this, the Employee agrees and undertake to not associate himself/herself with any of the clients or affiliates of the Company in any manner or in any capacity.
 - e) That the Employee undertakes to not disclose any confidential information/ and trade secrets of the Employer Company to other person or the company indulge in the same the business.
 - f) That the Employee hereby agrees and undertakes to not Commit any act or omission which may cause prejudice to the Company and/or its affiliates or their business and shall not, directly or indirectly, as owner, officer, director, stockholder, partner, associate, consultant,

manager, advisor, representative, employee, agent, creditor or otherwise, attempt to solicit or in any other way disturb or service any person, firm or corporation which is (a) in a business relationship with the Company or its affiliates or (b) is a competitor of Company or its affiliates and shall do nothing which may tarnish the image of the Company in the eyes of the public.

- g) That the Employee undertakes not to pass any statement or indulge in any activity leading to the defamation of Employer Company.
- h) That the Employee also undertakes to not file any litigation/case/complaint against each other in future. If there is any litigation/case found pending, the same shall be withdrawn.
- i) That the Employee hereto undertakes to remain bound by the terms set out in this Agreement and shall abide by the same without in any manner disputing the same.

11. That a relieving letter will be issued by the company upon fulfillment of the termination process and the Company shall have full discretion for the same.

12. That an employee can be terminated for breach of conduct, where the management has lost confidence and trust on the employee by giving adequate reasons and with or without notice pay. Specific cases may also be referred to the disciplinary committee for a due process of enquiry, wherein the employee may be asked to appear for an enquiry so as to provide him/her an opportunity for being heard in line.